

April 30, 2026

Mellela Marx  
Precinct 12

RE: ARTICLE 53

Dear Fellow Town Meeting Members:

Many of the proposed developments in the MBTA overlay district, replacing 2 family homes on small lots with towering multi-unit buildings with no setbacks and minimal parking, are being entertained because of “creative” interpretations of the commercial bonus rule.

The intent of the MBTA Act bonus is to allow a bonus floor (increase building up to 65 feet tall) and a zero setback if 60% of the entire ground floor - whether enclosed or unenclosed - is allocated to commercial space. This is to encourage viable business development. By interpreting the “ground floor at street level” as something other than the footprint of the building, the board would be allowing projects that are out of compliance with the bylaw we passed in 2023, out of proportion for the lots they sit on and out of scale for the neighborhood.

It is called a “bonus” for a reason: To reward developments that offer significantly sized commercial space in Arlington. This may not be possible on smaller parcels where many other types of buildings up to 52 feet tall are still allowed.

Please vote “YES” on Article 53 to clarify the method for calculating the ground floor space so that we can ensure that we get significant needed commercial spaces for Arlington in return for bonus floors.